

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
OTIS CYRUS,

Plaintiff,

-against-

THE CITY OF NEW YORK and
NYPD DETECTIVE WILLIAM CAMACHO,

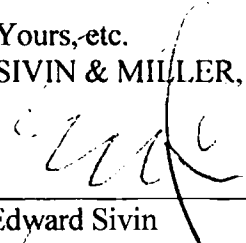
Defendants.
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 2, 2018

Yours, etc.
SIVIN & MILLER, LLP

By 

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007

-NYPD Detective William Camacho, c/o NYPD 77th Detective Squad, 127 Utica Ave., Brooklyn, NY 11213

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
OTIS CYRUS,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD DETECTIVE WILLIAM CAMACHO,

Defendants.

----- X

Plaintiff, by his attorneys Sivin & Miller, LLP, complaining of defendants, alleges
as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the
dates when the state-law causes of action accrued herein, a notice of claim and intention to sue was
duly served upon and filed with the municipal defendants on behalf of plaintiff; that this action was
not commenced until the expiration of thirty (30) days after such notices of claim and intention to
sue were presented and the municipal defendants have neglected and/or refused to make adjustment
or payment thereon, and this action is being commenced within one year and ninety days after the
causes of action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

4. That at all times herein mentioned, defendant NYPD Detective William
Camacho (hereinafter “Camacho”) was and is employed as a detective with the NYPD.

5. That at all times herein mentioned, Camacho was acting within the course and scope of his employment as an officer with the NYPD.

6. That at all times herein mentioned, Camacho was acting under color of state law.

7. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

THE FACTS

8. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

9. That on or about November 29, 2016, at his home at 104 Hendrix Street, Brooklyn, NY, plaintiff was forcibly seized and detained by Camacho and other NYPD officers without a warrant and without probable cause or reasonable suspicion to believe that he had committed or was about to commit a crime.

10. That upon being seized by the NYPD officers, plaintiff was told that he was suspected of a crime that took place at a Rite Aid store on November 16, 2016.

11. That in response to these accusations by the officers, plaintiff advised the officers that he had an alibi and that Rite Aid surely had video surveillance tape that would demonstrate that he had not committed any crime at the Rite Aid store and indeed was not even present at the Rite Aid store on the day on which the crime allegedly was committed.

12. That despite plaintiff's advice, the NYPD officers arrested plaintiff and forcibly detained plaintiff and brought him to a police precinct.

13. That once at the precinct, plaintiff again advised NYPD officers, including Camacho, that he had an alibi and that Rite Aid surely had video surveillance tape that would

demonstrate that he had not committed any crime at the Rite Aid store and indeed was not even present at the Rite Aid store on the day on which the crime allegedly was committed.

14. That despite plaintiff's advice, the NYPD officers, including Camacho, continued forcibly to detain plaintiff and made no attempt to confirm plaintiff's alibi or to secure any videotape footage from Rite Aid.

15. That after plaintiff was in custody, Camacho improperly induced Rite Aid employees into implicating plaintiff in the crimes that took place in Rite Aid on November 16, 2016.

16. That Camacho initiated and/or caused to be initiated a prosecution of plaintiff in which plaintiff was charged with crimes of which he was innocent and of which Camacho knew plaintiff to be innocent.

17. That in support of the criminal prosecution, Camacho knowingly made false statements to the Office of the District Attorney and/or knowingly made false statements that he knew would be conveyed to the District Attorney, which statements were intended to implicate plaintiff in the illegal acts committed inside the Rite Aid store on November 16, 2016.

18. That the aforementioned false statements and fabrications by Camacho constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

19. That Camacho and the other NYPD officers investigating the November 16, 2016 incident willfully and deliberately ignored, withheld, and disregarded evidence that would have exculpated plaintiff, including but not limited to plaintiff's alibi and videotape footage of the incident.

20. That in support of the criminal prosecution, Camacho executed a Criminal Court Complaint in which he made accusations against plaintiff that he knew were false, including that a

Rite Aid employee observed plaintiff commit illegal acts inside the Rite Aid Store on November 16, 2016.

21. That plaintiff had not committed any of the acts of which he was accused, and Camacho and the other NYPD officers knew that plaintiff had not committed any of the acts of which he was accused and did not have probable cause to criminally charge plaintiff.

22. That as a consequence of this prosecution, plaintiff was required to attend court on numerous occasions and was restricted in his liberty and travel.

23. That on or about May 26, 2017, the criminal charges against plaintiff were dismissed and the criminal proceeding resulted in a termination favorable to plaintiff.

24. That the aforesaid actions by Camacho were intentional, spiteful, and malicious in nature.

25. That as a result of the foregoing, plaintiff suffered and continues to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, and economic loss.

FIRST CAUSE OF ACTION AGAINST CAMACHO

(False Arrest/False Imprisonment Under 42 USC Section 1983)

26. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

27. That the aforesaid actions of Camacho in seizing, detaining, arresting, and imprisoning plaintiff without a warrant and without probable cause constituted illegal and unreasonable seizures of plaintiff, in violation of plaintiff's rights under the Fourth Amendment, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

SECOND CAUSE OF ACTION AGAINST THE CITY AND CAMACHO

(Malicious Prosecution Under NY State Law)

28. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

29. That the aforesaid actions of Camacho and the other NYPD officers constituted a malicious prosecution of plaintiff, for which Camacho and the other NYPD officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST CAMACHO

(Malicious Prosecution Under 42 USC Section 1983)

30. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

31. That the aforesaid actions by Camacho and the other NYPD officers in maliciously prosecuting plaintiff constituted illegal and unreasonable seizures of plaintiff, in violation of plaintiff's rights under the Fourth Amendment, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

FOURTH CAUSE OF ACTION AGAINST CAMACHO

(Denial of Right to Fair Trial Under 42 USC Section 1983)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforesaid actions by Camacho in withholding exculpatory evidence and in making false statements and conveying false evidence to the District Attorney in support of plaintiff's prosecution constituted a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, and Retention)

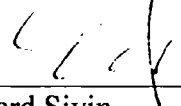
34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. That the aforesaid actions by Camacho and the other NYPD officers and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, and retention of Camacho and the other NYPD officers.

WHEREFORE, plaintiff demands judgment against both defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Camacho, in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against Camacho pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
July 2, 2018

Yours, etc.
SIVIN & MILLER, LLP

By 

Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

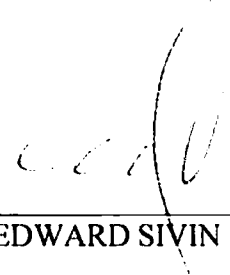
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
July 2, 2018



EDWARD SIVIN

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Plaintiff,

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THE CITY OF NEW YORK, et. al.,

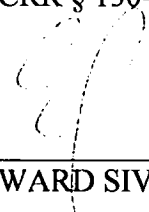
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
July 2, 2018